

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
July 16, 2026

#	Case Name	Tentative
1.	30-2021-01184189 Holcomb vs. Aliso Villas Condominium	Plaintiff Scott Palmer Holcomb moves for an order granting him relief from: (1) the order of May 14, 2026 that granted defendants' motion for attorneys' fees on appeal; and (2) the amended judgment entered on May 29, 2026. Plaintiff contends that he could not respond to the motion for fees because he was recovering from injuries sustained in a motor vehicle accident. Defendants oppose the motion. Plaintiff's authority for the requested relief is subdivision (b) of Code of Civil Procedure section 473. That provision provides in relevant part: The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be

	accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. Plaintiff contends that the motion was granted because it was unopposed and defendants' request for fees was not given sufficient scrutiny. He states that he wishes to oppose the motion and challenge some of the underlying billing submitted by defense counsel, which he contends was not spent on the appeal. In support of his motion, plaintiff offers his own declaration and several exhibits that include a chronology of events relating to his motor vehicle accident and doctors' appointments, doctors' appointment reminders, and a letter from the Department of Veterans Affairs. However, plaintiff never declares that he was too incapacitated to prepare an opposition to the motion or that he contacted defense counsel to ask for a continuance of the hearing on the motion. Nor does he deny receiving the motion. In fact, as defendants point out, plaintiff did not do anything about the motion until after the amended judgment was entered and served. Additionally, plaintiff did not submit a proposed opposition to the motion for attorneys' fees with his moving papers. With their opposition, defendants have submitted the declaration of defense counsel, who declares that, during the same timeframe that plaintiff contends he was incapacitated, he was filing and serving documents in another case that he has with defendants and defense counsel. Defendants rightly contend that these actions belie plaintiff's contentions of incapacity. Accordingly, the motion of plaintiff Scott Palmer Holcomb for an order granting him relief from the order of May 14, 2026 that granted defendants' motion for attorneys' fees on appeal and the amended judgment entered on May 29, 2026 is DENIED.
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